

25NNCV01847 25NNCV01847

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Case Number: 25NNCV01847 Hearing Date: August 12, 2026 Dept: X

#23 - JAMES COLUCCI vs SABRINA KHAGGI, et al.

Plaintiff moves for

further responses to Special Interrogatories, Set Two from Defendant Sabrina Khaggi.

Plaintiff served

Special Interrogatories, Set Two, on April 8, 2026. Plaintiff's motion states the response deadline passed on May 13, 2026, Defendant later served responses on or about May 29, 2026, and those responses were initially unverified. Plaintiff thereafter sent a detailed deficiency letter on June 3, 2026, and a further meet-and-confer letter on June 22, 2026, specifically identifying defects in the interrogatory responses and demanding amended responses. The June 3 letter specifically identified Special Interrogatory Nos. 29, 31, 32, 33, 34, and 35 as requiring corrected amended responses because the answers did not respond to the interrogatories asked.

Defendant later

transmitted verifications on June 4, 2026, and Defendant's opposition contends later supplemental responses rendered the motion unnecessary. However, Plaintiff's later correspondence states the supplemental responses still did not fully answer at least some of the interrogatories at issue.

The Court finds the

meet-and-confer requirement satisfied. The record reflects a May 15 overdue-response letter, a detailed June 3 deficiency letter, a June 22 renewed letter, and follow-up communications by telephone. That showing is sufficient on this record.

The motion is not moot. Defendant's opposition argues later supplemental responses made further relief unnecessary. However, Plaintiff's later correspondence states the supplemental responses still failed to identify which previously produced documents were being referenced in response to Special Interrogatory No. 29 and still did not fully state what information Defendant provided to Jordan Midgley in response to Special Interrogatory No. 31.

The Court cannot conclude the motion has been fully resolved by supplemental service. The Court finds further responses are warranted as to Special Interrogatory Nos. 29, 31, 32, 33, 34, and 35.

Special

Interrogatory No. 29 sought identification of documents relating to the March 25, 2024 water test, but the response instead discussed whether Defendant was aware of a plumbing leak from her unit.

Special

Interrogatories Nos. 31 and 32 asked what information Defendant provided to Midgley, Kingery, and/or any American Leak Detection representative during the January 19, 2026 inspections, but the responses instead invoked lack of technical knowledge or referred generally to contractor work.

Special

Interrogatories Nos. 33, 34, and 35 asked whether Defendant informed Midgley and/or Kingery about the March 25, 2024 water test, its findings, and HOA notices or directives, but the cited responses addressed work dates, contractor identities, or construction materials rather than the questions asked.

Those responses are evasive or incomplete responses within the meaning of Code of Civil Procedure section 2030.300(a)(1). The Court is not persuaded by the objections reflected in the present record. These interrogatories concern Defendant's own knowledge, communications, disclosures, and contentions regarding the March 25, 2024 water test, the January 2026 inspections, HOA notices, and claimed causation defenses.

No particularized

showing of undue burden sufficient to justify withholding answers appears in the record before the Court. (Code Civ. Proc., § 2019.030(a)(2).) Further, the

Court finds the initial responses were untimely, and no sufficient showing has been made on this record to relieve Defendant from waiver as to objections to the interrogatories identified above. (Code Civ. Proc., § 2030.290(a).)

Accordingly, the further responses to Special Interrogatory Nos. 29, 31, 32, 33, 34, and 35 shall be served without objections.

As to sanctions, Plaintiff seeks \$9,647.50. A monetary sanction is mandatory against a party or attorney who unsuccessfully opposes a motion to compel further responses, absent substantial justification or circumstances making sanctions unjust. (Code Civ. Proc., § 2030.300(d).) The Court determines that sanctions are warranted. The record reflects untimely initial responses, repeated meet-and-confer efforts, and continuing deficiencies in the interrogatory responses even after supplemental service. Therefore, the Court awards monetary sanctions in the reduced amount of \$3,260.00, payable by Defendant Sabrina Khaggi and/or her counsel of record, jointly and severally, to Plaintiff's counsel within 30 days of service of notice of ruling.

Moving Party is to give notice.